



Cleaner Employment Agreement

This agreement is between My Smart Life LLC, doing business as Elite Cleaning Services (the “Company”), and the employee identified in the accompanying electronic execution record (the “Cleaner”). The effective date is the date specified in that record. This agreement sets out work standards, payment terms, customer protections and related responsibilities.

Welcome and Professional Standards

Welcome to Elite Cleaning Services. We pride ourselves on providing reliable, professional and trustworthy cleaning services.

- Arrive on time and complete work to Company standards.
- Respect customers and their homes.
- Report damage to the Company immediately.

The Company holds liability insurance.

Payment

The Cleaner will be paid the agreed rate for each completed job. The applicable job rate will be communicated and agreed before the work is performed, subject to applicable minimum wage and overtime requirements.

Payroll is run each Friday by ACH bank deposit. Applicable payroll taxes will be withheld and processed, and the Company will provide a Form W-2 after year-end as required by law.

Any tips given directly by customers belong entirely to the Cleaner and will not reduce or affect the Cleaner’s agreed pay.

Employment and Consideration

This is an employee agreement. The parties enter into it in consideration of employment or continued employment, compensation, and access provided through work to Company customers and nonpublic business information. The agreement takes effect prospectively from its effective date.

Customer Relationships and Restricted Work

Protected Customers

A “Protected Customer” means a customer who purchased cleaning services from the Company and whom the Cleaner serviced, had material business contact with, or obtained nonpublic customer-specific information about through work for the Company during the preceding 12 months. Both the customer purchase and the Cleaner’s connection to that customer must fall within that period.

After employment ends, Protected Customers are determined using the final 12 months of employment, or the entire employment period if shorter. A customer’s later cancellation of Company services does not by itself remove that customer from this defined group during the restricted period.

Customer Restrictions

During employment and for 12 months after employment ends, whether by resignation or termination, the Cleaner must not, without the Company’s prior written permission:

- Solicit or encourage a Protected Customer to cancel, reduce or transfer cleaning services away from the Company.
- Seek, accept, arrange or perform cleaning services for a Protected Customer outside the Company, whether for the Cleaner’s own benefit or on behalf of another person or business.
- Knowingly assist another person or business to undertake either of the activities prohibited above.

The restriction on accepting, arranging or performing cleaning services applies even where the Protected Customer initiates contact. During the restricted period, the Cleaner must promptly notify the Company of any request from a Protected Customer for cleaning services outside the Company.

These provisions are intended to protect the Company’s customer relationships, goodwill and confidential information. They do not otherwise prohibit the Cleaner from working in the cleaning industry. They do not restrict activities protected by applicable law.

Agreed Exceptions

Any agreed exceptions, including existing private customers the Cleaner brings to the relationship, must be identified in a written schedule signed by both parties. An exception applies only to the customers and activities expressly identified in that schedule.

Confidentiality and Company Property

Confidential Information

The Cleaner must use nonpublic customer and Company information only as necessary to perform authorized work for the Company and must not disclose, copy, transfer or use it for personal benefit or for another business. This includes customer lists, contact details, access codes, pricing, schedules and service preferences.

These obligations continue after employment ends for as long as the information remains confidential and legally protectable. They do not apply to information lawfully available to the public, information lawfully known independently of Company work, general skills and experience, or disclosures and activities protected by law.

Return of Property and Information

All keys, equipment and supplies provided by the Company remain Company property. Upon request or when employment ends, the Cleaner must promptly return Company keys, equipment, documents and other property, and return or securely delete Company and customer information held on personal devices or accounts.

On request, the Cleaner must confirm completion in writing. This requirement does not require destruction of records that must lawfully be preserved or prevent retention of the Cleaner's own employment and pay records. Any retained confidential information remains subject to lawful confidentiality obligations.

Ending Employment

Either party may end employment at any time, subject to applicable law. The customer restrictions continue for the 12-month period stated above. Confidentiality, return-of-property and other obligations intended to continue after employment remain effective according to their respective terms.

Record Retention and Agreement Terms

Record Retention and Privacy

The Company will retain this signed agreement and associated signature records during employment and for at least 12 months after employment ends. Records may be retained longer where reasonably necessary to comply with applicable law, establish or enforce contractual rights, or address actual or reasonably anticipated complaints, investigations or legal claims, including applicable claim periods.

The Company will use reasonable safeguards and limit access to authorized personnel, service providers and professional advisers who need the records for these purposes, or others where disclosure is required by law. Records will be securely disposed of when no longer needed for these purposes. Other employment, payroll and tax records have their own retention requirements. Retention does not shorten or extend any contractual obligation.

Governing Law and Enforcement

Florida law governs this agreement, subject to controlling federal law. To the extent permitted by law, court proceedings concerning it will be brought in the state courts in Sarasota County, Florida, or, where federal jurisdiction exists, the United States District Court for the Middle District of Florida.

For an enforceable breach, the Company may seek damages and appropriate injunctive relief, subject to applicable legal requirements and any required bond. In an action to enforce or challenge the customer restrictions, the prevailing party may recover reasonable attorney fees and costs as permitted by law. No remedy is automatic, and no statutory authority of the court is limited by this agreement.

If a provision is unenforceable, the remaining provisions continue to the extent permitted by law. An overbroad restrictive covenant will be modified and enforced only to the extent required or permitted by applicable law. Changes and exceptions must be recorded in a writing signed by both parties.